

25TRCV01899 25TRCV01899

County: los-angeles

Division: Civil Law and Motion

Department: B

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Case Number: 25TRCV01899 Hearing Date: August 10, 2026 Dept: B

Moving Parties: Plaintiff Shaheda Begam

Responding

Party: Defendant Meherban Sachdeva

(1)

Motion to Compel Responses to Form

Interrogatories

(2)

Motion for Order Deeming Matters

Admitted

The Court

considered the moving, opposition, and reply papers.

RULING

The motions

are DENIED AS MOOT.

The

Court orders that defendant Meherban Sachdeva pay sanctions to plaintiff in the amount of \$1020, in total for both motions within thirty days.

BACKGROUND

On June

10, 2025, plaintiff Shaheda Begam filed a complaint against Meherban Sachdeva and Baljeet Kaur for (1) account stated, (2) promissory fraud, (3) conversion, and (4) money had and received.

On

July 23, 2025, defendants (self-represented) filed an answer.

LEGAL

AUTHORITY

Interrogatories

If a

party to whom interrogatories are directed fails to serve a timely response, the propounding party may move for an order compelling responses and for a monetary sanction. CCP §2030.290(b). The statute contains no time limit for a motion to compel where no responses have been served. All that need be shown in the moving papers is that a set of interrogatories was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. *Leach v. Superior Court* (1980) 111 Cal. App. 3d 902, 905-906.

Request

for Admissions

Pursuant

to CCP § 2033.280(b), a party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction under Chapter 7 (commencing with Section 2023.010). "Failure to timely respond to RFA does not result in automatic admissions. Rather, the propounder of the RFA must 'move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction' under § 2023.010 et seq." *Weil & Brown, Civ. Proc. Before Trial*, ¶ 8:1370, citing CCP § 2033.280(b). The court "shall" grant the motion to deem RFA admitted, "unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." CCP § 2033.280(c).

DISCUSSION

Plaintiff requests that the Court compel defendant Meherban Sachdeva to respond to plaintiff's form interrogatories, set one and to deem admitted the truth of the matters in plaintiff's requests for admission, set one.

The complaint alleges that in 2022, plaintiff worked as a cashier at a 7-11 convenience store owned by defendants. Plaintiff had recently moved to the U.S. from India, where defendants were also from, although they had moved to the U.S. approximately thirty years before plaintiff.

Complaint, ¶6. As plaintiff worked for Sachdeva, the two got to know each other better. In August 2022, plaintiff Sachdeva and his wife, Kaur, know that she hoped to buy a house in Los Angeles. Plaintiff mentioned that she was saving money for a down payment on a home. Id., ¶7. Sachdeva informed plaintiff that he and his wife owned more than a half dozen 7-11 stores and that they were consistently profitable businesses. Id., ¶8. In September 2022, Sachdeva told plaintiff that instead of using her savings for a down payment on a home, she should invest it with his companies. If she did that, he explained, he would repay her and pay her a return of at least 34% on her investment. Id., ¶9. On September 28, 2022, plaintiff used her entire savings to invest \$50,000 in defendants' businesses. Id., ¶10. Defendants continually made excuses for their delay in repaying plaintiff. Id., ¶12. In December 2024, Sachdeva wrote plaintiff a check for \$45,500, post-dated to March 31, 2025. When plaintiff attempted to deposit the check, it was returned due to insufficient funds. Id., ¶13.

Plaintiff asserts that on February 2, 2026, plaintiff served written discovery on defendant Sachdeva. No responses were received by the due date. On April 13, plaintiff's counsel sent a letter to defendant demanding responses by April 20. On April 30, defendant sent an email to plaintiff's counsel stating that he was "currently in the process of preparing my responses and will be serving them shortly." Plaintiff's counsel provided an extension to May 15. As of the filing date of the motions (July 2), plaintiff's counsel had not received responses.

In opposition, defendant asserts that he has served responses. Defendant states that the delay in serving responses resulted from "documented medical circumstances, financial hardship, and defendant's lack of legal representation."

In reply, plaintiff acknowledges that defendant served responses on July 21, but contends that defendant has not shown an excuse for his delay. Plaintiff also asserts that defendant should be ordered to provide further responses to form interrogatories, nos. 17.1 (because requests for admission, nos. 1, 4-19, 21, 22, and 24-30 were not unqualified admissions) and 50.1 (response disregards the subparts).

The Court finds that plaintiff properly served discovery requests and that defendant failed to timely serve responses but served responses after the motions were filed.

The motions are thus MOOT.

Sanctions

Under CCP § 2023.030(a), “[t]he court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct. . . . If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” Under CCP § 2023.010, an example of the misuse of the discovery process is “(d) Failing to respond or to submit to an authorized method of discovery.”

Sanctions

are mandatory in connection with motions to compel responses to interrogatories and requests for production of documents against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel unless the court “finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” CCP §§ 2030.290(c), 2031.300(c).

Cal. Rules of Court, Rule 3.1348(a) states: “The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was

withdrawn, or the requested discovery was provided to the moving party after the motion was filed.”

Plaintiff requests sanctions against defendant in the amount of \$960 (\$450/hr. x 2 hrs., filing fee) for motion to compel form interrogatories and \$510 (\$450/hr. x 1 hrs., filing fee) for motion to deem admissions. In opposition, defendant asserts that the delay was not the result of willful misconduct or intentional disregard of the discovery process. The Court finds that sanctions are warranted and that \$1020 (\$450/hr. x 2 hrs., \$120 in filing fees) is a reasonable amount to be imposed against defendant, in total for both motions.

ORDER

The motions
are DENIED AS MOOT.

The
Court orders that defendant Meherban Sachdeva pay sanctions to plaintiff in the amount of \$1020, in total for both motions within thirty days.

Plaintiff
is ordered to give notice of ruling.